

Resolution Pack

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1

Application and Definitions

1.1

Unless otherwise stated, this Part applies to a _BRRD undertaking_.

1.2

In this Part, the following definitions shall apply:

consolidating supervisor

means a _competent authority_ responsible for the exercise of supervision on a _consolidated basis_ of:

1. (1) a _UK parent institution_; or
2. (2) _institutions_ controlled by a _UK parent financial holding company_ or a _UK parent mixed financial holding company_.

group resolution pack

means a document containing the information necessary to draw up and implement a _group resolution plan_.

group resolution plan

means a plan for the resolution of a _group_ drawn up in accordance with Article 40 and Schedule 2 of The Bank Recovery and Resolution (No 2) Order 2014 (2014/3348).

resolution authority

means the _Bank of England_.

resolution pack

means a document containing the information necessary to draw up and implement a _resolution plan_.

resolution plan

means a resolution plan for a _firm_ drawn up by the _Bank of England_ in accordance with Article 37 of The Bank Recovery and Resolution (No. 2) Order 2014.

UK parent undertaking

means a _UK parent institution_ , a _UK parent financial holding company_ or a _UK parent mixed financial holding company_.

1.3

Unless otherwise defined, any italicised expression used in this Part and in the _CRR_ has the same meaning as in the _CRR_.

2

Resolution Pack

2.1

This Chapter:

1. (1) applies to every _firm_ which is not required to prepare, maintain and submit a _group resolution pack_ under 3; but
2. (2) does not apply to a _firm_ that is a member of a _group_ for which a _group resolution pack_ has been submitted to the _PRA_ under 3.

2.2

In this Chapter:

1. (1) references to the taking of action include the taking of action by:
 1. (a) a _firm_ ;
 2. (b) any other person in the same _group_ as a _firm_ ; and
 3. (c) a partnership of which a _firm_ is a member;
2. (2) references to the business of a _firm_ include references to the business of:
 1. (a) any other person in the same _group_ as the _firm_ ; and
 2. (b) a partnership of which the _firm_ is a member.

2.3

A _firm_ must prepare and maintain a _resolution pack_.

2.4

A _firm_ must provide its _resolution pack_ to the _PRA_ by online submission through:

1. (1) email; or
2. (2) the appropriate systems made available to _firms_.

2.5

A _resolution pack_ must contain sufficient information and analysis to facilitate the planning for or taking of action in the event of:

1. (1) circumstances arising in which it is likely that the business (or any part of the business) of the _firm_ will fail; or
2. (2) the failure of the business (or any part of the business) of the _firm_.

2.6

In 2.5, references to the planning for or taking of action include the planning or taking of action by _The Treasury_ or the _Bank of England_ in relation to the possible exercise of any of their powers under the Banking Act 2009.

2.7

A _resolution pack_ must take into account the wider business of the _group_ of which the _firm_ is a member.

3

Group Resolution Pack

3.1

The changes to this rule are effective from 23:00 on 31/12/2020.

This Chapter applies to a _BRRD undertaking_ which is:

1. (1) a _UK parent undertaking_ unless _the FCA_ is the _consolidating supervisor_ of its _group_.
2. (2) [deleted.]

3.2

In this Chapter:

1. (1) references to the taking of action include the taking of action by:
 1. (a) a _BRRD undertaking_ ;
 2. (b) any other _person_ in the same _group_ as a _BRRD undertaking_ ; and
 3. (c) a _partnership_ of which a _BRRD undertaking_ is a member;
2. (2) references to the business of a _BRRD undertaking_ include references to the business of:
 1. (a) any other _person_ in the same _group_ as the _BRRD undertaking_ ; and
 2. (b) a _partnership_ of which the _BRRD undertaking_ is a member.

3.3

A _BRRD undertaking_ must prepare and maintain a _group resolution pack_.

3.4

The changes to this rule are effective from 23:00 on 31/12/2020.

A _BRRD undertaking_ must submit its _group resolution pack_ to the _PRA_.

3.5

A _BRRD undertaking_ required by 3.4 to submit its _group resolution pack_ to the _PRA_ must provide the _group resolution pack_ to the _PRA_ by online submission through:

1. (1) email; or
2. (2) the appropriate systems made available to _BRRD undertaking_ s.

3.6

A _group resolution pack_ must contain sufficient information and analysis to facilitate the planning for or taking of action in the event of:

1. (1) circumstances arising in which it is likely that the business (or any part of the business) of the _BRRD undertaking_ or any other member of its _group_ will fail; or

2. (2) the failure of the business (or any part of the business) of the _BRRD undertaking_ or any other member of its _group_.

3.7

In 3.6, references to the planning for or taking of action include the planning or taking of action by _The Treasury_ or the _Bank of England_ in relation to the possible exercise of any of their powers under the Banking Act 2009 in respect of any member of the _group_.

3.8

The _group resolution pack_ must contain information concerning:

1. (1) the _BRRD undertaking_ ; and
2. (2) each of the other members of its _group_.

[Note: Art. 13(1) of the _BRRD_]

4

Review of Resolution Pack and Group Resolution Pack

4.1

A _firm_ required to prepare, maintain and submit to the _PRA_ a _resolution pack_ under 2 must:

1. (1) keep the _resolution pack_ up to date, which includes ensuring that the _resolution pack_ is updated to reflect any material developments in the _firm's_ business; and
2. (2) notify the _PRA_ of any material changes made to the _resolution pack_ promptly and, in any event, within one month of making any such change.

4.2

A _BRRD undertaking_ required to prepare, maintain and submit a _group resolution pack_ under 3 must keep the _group resolution pack_ up to date, which includes ensuring that the _group resolution pack_ is updated to reflect any material developments in its business and the business of other member of its _group_.

4.3

A _BRRD undertaking_ required to prepare, maintain and submit to the _PRA_ a _group resolution pack_ under 3 must notify the _PRA_ of any material changes made to the _group resolution pack_ promptly and, in any event, within one month of making any such change.

5

Governance Arrangements

5.1

A _firm_ required to prepare, maintain and submit to the _PRA_ a _resolution pack_ under 2 must:

1. (1) taking into account the nature, scale and complexity of its business, establish and maintain appropriate internal processes regarding the governance of its _resolution pack_ ;
2. (2) ensure that its _governing body_ is responsible for assessing, approving and overseeing the _firm's_ arrangements in place to produce the _firm's_ resolution pack_;

3. (3) ensure that its audit committee periodically reviews these arrangements; and
4. (4) nominate an executive _director_ who is a member of the _firm's governing body_ to have responsibility for the _resolution pack_ and for overseeing the internal processes regarding its governance.

5.2

A _BRRD undertaking_ required to prepare, maintain and submit a _group resolution pack_ under 3 must:

1. (1) taking into account the nature, scale and complexity of its business and the business of other members of its _group_, establish and maintain appropriate internal processes regarding the governance of its _group resolution pack_ ;
2. (2) ensure that its _governing body_ is responsible for assessing, approving and overseeing the arrangements in place to produce the _group resolution pack_ ;
3. (3) ensure that its audit committee periodically reviews these arrangements; and
4. (4) nominate an executive _director_ who is a member of its _governing body_ to have responsibility for the _group resolution pack_ and for overseeing the internal processes regarding its governance.